Dad's Will, Powers of Attorney, Directives and Deeds in One Place

A legal papers organizer: where each one is, the date on it, who holds a copy, and the blanks.

The will is in a desk drawer, or it was. The deed might be at the bank. Nobody remembers who has a copy of the power of attorney.

This page doesn't ask you to read or understand any of them. It asks where each one is, the date on it, and who has it.

WHAT TO LOCATE	WHERE IT IS	DATE ON IT	WHO HOLDS IT OR A COPY
Current will			
Trust documents, if Dad has signed a trust			
Durable financial power of attorney			
Healthcare decision-making documents			
Advance healthcare directive			
Deeds and other property documents			
Statements or titles that show how major assets are titled			
Beneficiary forms on file for accounts or policies			
The attorney or office that prepared any of these, if anyone remembers			
Which family members know where the signed papers are kept			

What's missing or not found, and who will look or ask

Anything above with an empty line. Put a name next to each.

FOR EXAMPLE Nobody has seen the power of attorney. Karen will ask Dad on Sunday whether it's in the desk or with the office that drew it up.

How to use it

- Write the date printed on each document. If you've only heard about a paper, write “heard about, not seen”.
- Don't rewrite or summarize a document here. Just say where it is.
- Ask Dad before moving or copying anything. These are his papers.
- Bring this page with you when you talk with your Medicaid planner or an elder law attorney.

What this page doesn't do

It doesn't explain what any document means, or say whether one is valid, complete or current. An empty line means a paper hasn't been found yet, and nothing more than that. What a document says and whether it still fits are questions for an elder law attorney. Nothing here is legal, financial or tax advice.

Ready for the next step?

You know where each of Dad's legal papers is, who has a copy, and which ones are still to be found. The planning interview asks about the rest of your family's situation, with this page beside you, and gives you a free planning report you can bring to any conversation about paying for care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

The will, power of attorney and healthcare rows, and the row about who knows where the papers are kept, follow what AARP's legal checklist for family caregivers tells families to gather and keep together. The rest come from the Medicaid Planning Roadmap's own working list for this step.

1. AARP, A Legal Checklist for Family Caregivers